

24STCV00847 24STCV00847

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV00847 Hearing Date: July 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV00847

DONAVON

SAWYER vs PROFESSIONAL FOUNDATION REPAIR & CONSTRUCTION, INC., et al.

July

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S SPECIAL
INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS OF \$5,200.00

RULING:

The Court orders the
Motion off calendar, considering the recent supplemental response.

Moving party Plaintiff to
give notice.

I.

BACKGROUND

The
Court incorporates by reference the Background section of the Minutes entered
on June 8, 2026.

On May 5, 2026, DONAVON
SAWYER (Plaintiff) filed the Motion to Compel Further Responses to Requests for
Admissions, including because some are incomplete. Plaintiff also requests \$5,200.00
in sanctions against Defendant.

DARIN WELLS (Defendant) opposes,
arguing that the supplemental responses make the Motion moot, and the separate
statement outdated, and the Court should reason the same way as with the
discovery matters heard on June 8, 2026.

The Reply emphasizes the
extent of meeting and conferring, the availability of sanctions even after
supplements, and Defendant's supplemental responses still deficiently limiting them
to individual capacity.

II.

LEGAL STANDARD

Where respondents timely
responded to requests for admissions, requesting parties may move to compel
further answers based upon a showing of some deficiency. (Wimberly v. Derby Cycle Corp. (1997) 56 Cal.App.4th 618, 636;
Code
Civ. Proc., § 2033.290.)

"If the party seeking a
monetary sanction meets its burden of proof, the burden shifts to the opposing

party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v.

U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the "whole picture" of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

III.

ANALYSIS

Plaintiff's specific arguments are stated as follows:

By

withholding the promised RFA supplements for nearly two months and then serving more than thirty pages of further responses on the eve of Plaintiff's deadline to file a Reply, Defendant deprived Plaintiff of any fair opportunity to evaluate those responses, meet and confer over any continuing deficiency, and timely notice Defendant Wells's deposition with the benefit of complete admissions. Plaintiff still must assess the substance of Defendant's June 17, 2026, supplemental responses, request by request, and reserves the right to challenge their sufficiency; the eleventh-hour timing of those supplements is itself a product of the very delay this motion was filed to remedy.

(Reply, 1:15-22.)

Defendant responds that the supplemental responses makes the Motion moot, meeting and conferring further might be ordered, Plaintiff has statutory time to file updated Motion to Compel, and Plaintiff failed to meet and confer after one letter after insurer-retained counsel advised that there would be a substitution of counsel.

Where respondents served untimely discovery responses after parties have filed motions to compel

responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (*Sinaiko Healthcare Consulting, Inc. v. Klugman* (2007) 148 Cal.App.4th 390, 409; *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 256 [citing *Sinaiko* regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

“A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (*Stewart v. Colonial W. Agency* (2001) 87 Cal.App.4th 1006, 1016. *Accord, Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293-1294.)

Here, a review of the supplement served after the Motion was filed (Opposition, Exhibit E), reveals that the responses are arguably code-compliant, such that Plaintiff should be required to file an updated and narrowed Motion based upon the supplemental responses, if desired.

The objections, followed by substantive responses, are acceptable. If a party objects to discovery requests, and also provides complete responses to the requests, then nothing is left to address in a motion to compel. (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269 [addressing requests for admissions].)

And partial admissions

are allowed. Respondents must admit the part of an admission request that is true (as expressed in the request, or as reasonably and clearly qualified), deny the part that is untrue, and specify the part as to which the responding party lacks sufficient information. (Code Civ. Proc., § 2033.220, subd. (b); *Applera Corp. v. MP Biomedicals, LLC* (2009) 173 Cal.App.4th 769, 778-779, fn.5.)

Further, responses after reasonable inquiries are allowed. Where a response indicates an inability to admit or deny a request for admission, the responding party must also state that a reasonable inquiry was made as to information known or readily obtainable to obtain sufficient information. (Code Civ. Proc., § 2033.220, subd. (c).)

As for answering in an individual capacity, that nonetheless relates to the above-referenced reasonable inquiry of others. Moreover, by law, admission responses are limited to the admitting respondent. “Any matter deemed to have been admitted ‘is conclusively established against the party making the admission’ but ‘is binding only on th[e] party’ that made the admission.” (*Inzunza v. Naranjo* (2023) 94 Cal.App.5th 736, 742.) “A trial court must judge whether use of a request for admissions is in conformity with the spirit of the law and serves substantial justice.... When a court is ‘troubled’ by the way a party has used requests for admission, the court may take corrective action.” (*LCPFV, LLC v. Somatdary Inc.* (2024) 106 Cal.App.5th 743, 755.)

Regarding sanctions, the Court finds substantial justification based upon delay caused during a projected substitution of counsel, which additional meeting and conferring could have resolved by Plaintiff inquiring about the delayed supplements and attorney substitution progress.

IV.

CONCLUSION

The Court orders the Motion off calendar, considering the recent supplemental response.

Additionally, the Court denies sanctions, it finding substantial justification based upon substitution of counsel in progress and inadequate meeting and conferring to avoid the

instant Motion.